HIGH COURT OF DELHI

APPELLATE JURISDICTION · SINGLE JUDGE

OMP (ENF) (COMM) No. 17 of 2021 **CNR: DHC010000172021**

Date of Pronouncement: 18 March, 2021 *Citation: 2021:DHC:1020*

CORAM: Hon'ble J.R. Midha, J.

Petitioner / Appellant: Amazon.com NV Investment Holdings LLC

- VERSUS -

Respondent / State: Future Retail Ltd., Future Coupons Pvt. Ltd. & Others

SUBJECT: COMMERCIAL ARBITRATION & ENFORCEMENT **AUTHORITY: Good Law (Binding Commercial Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

An Emergency Arbitrator is an 'Arbitral Tribunal' within the meaning of the Arbitration and Conciliation Act, 1996, and orders passed by such emergency arbitral tribunal are directly enforceable under Section 17(2) of the Act.

STATUTORY PROVISIONS INTERPRETED: Section 17(1), Section 17(2), Section 9, Section 36

FINAL DISPOSITION: EMERGENCY ARBITRATOR INTERIM INJUNCTION ENFORCED

EXECUTIVE SUMMARY:

Landmark ruling upholding the enforceable legal status of an Emergency Arbitrator's interim order under Section 17(2) of the Arbitration Act, enforcing Singapore International Arbitration Centre (SIAC) directions against Future Group.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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